

Biogen MA Inc. et al v. Somerset Therapeutics, LLC et al

Plaintiff:	Biogen MA Inc., Biogen Inc., Cold Spring Harbor Laboratory and Ionis Pharmaceuticals, Inc.
Defendant:	Somerset Therapeutics Private Limited, Somerset Therapeutics, LLC, Somerset Pharma, LLC, Somerset Therapeutics Limited and Odin Pharmaceuticals, LLC
Case Number:	1:2026cv00735
Filed:	June 22, 2026
Court:	U.S. District Court for the District of Delaware
Presiding Judge:	Colm F Connolly
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

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Docket Report

This docket was last retrieved on July 2, 2026. A more recent docket listing [may be available from PACER](#).

Date Filed	Document Text
July 2, 2026	Filing 16 SO ORDERED, re (16 in 1:26-cv-00580-CFC, 14 in 1:26-cv-00735-CFC, and 10 in 1:26-cv-00736-CFC) STIPULATION Regarding Consolidation and Scheduling Conference filed by Biogen MA Inc., Biogen Inc. The Somerset I, Somerset II, and Cipla Actions are consolidated for all purposes. All filings shall be made in the lead case, C.A. No. 26-580-CFC. The July 9, 2026 Telephonic Scheduling Conference is RESCHEDULED to August 6, 2026 at 2:00 p.m. See Order for further details. Signed by Judge Colm F. Connolly on 7/2/2026. Associated Cases: 1:26-cv-00580-CFC, 1:26-cv-00735-CFC, 1:26-cv-00736-CFC(mws)
July 2, 2026	Case associated with lead case: Create association to 1:26-cv-00580-CFC. ALL FUTURE FILINGS SHALL BE MADE IN LEAD CASE NO. 26-580-CFC ONLY. (mws)

Date Filed	Document Text
July 1, 2026	Filing 15 Letter to The Honorable Colm F. Connolly from Karen Jacobs - re (16 in 1:26-cv-00580-CFC, 10 in 1:26-cv-00736-CFC, 14 in 1:26-cv-00735-CFC) STIPULATION and [Proposed] Order Regarding Consolidation and Scheduling Conference . (Jacobs, Karen)
July 1, 2026	Filing 14 STIPULATION and [Proposed] Order Regarding Consolidation and Scheduling Conference - filed by Biogen Inc., Biogen MA Inc.. (Jacobs, Karen)
June 24, 2026	Filing 13 SUMMONS Returned Executed by Cold Spring Harbor Laboratory, Biogen Inc., Biogen MA Inc., Ionis Pharmaceuticals, Inc..Odin Pharmaceuticals, LLC served on 6/24/2026, answer due 7/15/2026. (Tigan, Jeremy)
June 24, 2026	Filing 12 SUMMONS Returned Executed by Biogen MA Inc., Biogen Inc., Cold Spring Harbor Laboratory, Ionis Pharmaceuticals, Inc..Somerset Therapeutics Private Limited served on 6/24/2026, answer due 7/15/2026. (Tigan, Jeremy)
June 24, 2026	Filing 11 SUMMONS Returned Executed by Biogen Inc., Cold Spring Harbor Laboratory, Biogen MA Inc., Ionis Pharmaceuticals, Inc..Somerset Pharma, LLC served on 6/24/2026, answer due 7/15/2026. (Tigan, Jeremy)
June 24, 2026	Filing 10 SUMMONS Returned Executed by Ionis Pharmaceuticals, Inc., Biogen Inc., Biogen MA Inc., Cold Spring Harbor Laboratory.Somerset Therapeutics, LLC served on 6/24/2026, answer due 7/15/2026. (Tigan, Jeremy)
June 24, 2026	Filing 9 JUDGE COLM F. CONNOLLY STANDING ORDERS. Parties shall comply with all applicable standing orders and consult the Court's website for updates. (mws)
June 24, 2026	Case Assigned to Judge Colm F. Connolly. Please include the initials of the Judge (CFC) after the case number on all documents filed. Associated Cases: 1:26-cv-00735-UNA, 1:26-cv-00736-UNA (alb)
June 23, 2026	Filing 8 Summons Issued as to Odin Pharmaceuticals, LLC on 6/23/2026; Somerset Pharma, LLC on 6/23/2026; Somerset Therapeutics Private Limited on 6/23/2026; Somerset Therapeutics, LLC on 6/23/2026. (Attachments: #1 Summons Issued, #2 Summons Issued, #3 Summons Issued)(lah)
June 23, 2026	CORRECTING ENTRY: The Corporate Parent/Other Affiliate information at D.I. #6 has been corrected. (nms)
June 22, 2026	Filing 7 Disclosure Statement pursuant to Rule 7.1: No Parents or Affiliates Listed filed by Cold Spring Harbor Laboratory. (lah)

Date Filed	Document Text
June 22, 2026	Filing 6 Disclosure Statement pursuant to Rule 7.1: identifying Other Affiliates The Vanguard Group, Inc., Fidelity Management & Research Company LLC, T. Rowe Price Investment Management, Inc., and T. Rowe Price Group, Inc. for Ionis Pharmaceuticals, Inc., filed by Ionis Pharmaceuticals, Inc. (lah) Modified on 6/23/2026 (nms).
June 22, 2026	Filing 5 Disclosure Statement pursuant to Rule 7.1: identifying Corporate Parent Biogen Inc. for Biogen MA Inc. filed by Biogen Inc., Biogen MA Inc.. (lah)
June 22, 2026	Filing 4 Report to the Commissioner of Patents and Trademarks for Patent/Trademark Number(s) 8,361,977 B2; 8,980,853 B2; 9,717,750 B2. (lah)
June 22, 2026	Filing 3 Supplemental information for patent cases involving an Abbreviated New Drug Application (ANDA) - Date Patentee(s) Received Notice: 6/1/2026. Date of Expiration of Patent: See Attached.Thirty Month Stay Deadline: 12/1/2028. (lah)
June 22, 2026	Filing 2 Notice, Consent and Referral forms re: U.S. Magistrate Judge jurisdiction. (lah)
June 22, 2026	Filing 1 COMPLAINT against Odin Pharmaceuticals, LLC, Somerset Pharma, LLC, Somerset Therapeutics Private Limited, Somerset Therapeutics, LLC (Filing fee \$405, receipt number ADEDC-4997611) - filed by Cold Spring Harbor Laboratory, Biogen MA Inc., Biogen Inc., Ionis Pharmaceuticals, Inc. (Attachments: #1 Exhibits A-C, #2 Civil Cover Sheet) (lah)

I. Executive Summary and Procedural Information

Parties & Counsel:
Plaintiff: Biogen MA Inc. , Biogen Inc. (Massachusetts, Delaware), Cold Spring Harbor Laboratory (New York), and Ionis Pharmaceuticals, Inc. (Delaware)
Defendant: Somerset Therapeutics, LLC (Delaware), Somerset Pharma, LLC (Delaware), Somerset Therapeutics Private Limited (India), and Odin Pharmaceuticals, LLC (Delaware)
Plaintiff's Counsel: Morris, Nichols, Arsht & Tunnell LLP
Case Identification: 1:26-cv-00735 , D. Del., 06/22/2026
Venue Allegations: Venue is alleged to be proper in the District of Delaware because several of the Somerset Defendants are organized under the laws of Delaware and maintain registered agents there, thereby residing in the district.
Core Dispute: Plaintiffs allege that Defendants' submission of an Abbreviated New Drug Application (ANDA) for a generic version of the drug Spinraza® (nusinersen) constitutes an act

of infringement of three U.S. patents covering the drug's composition and methods of use for treating spinal muscular atrophy (SMA).

Technical Context: The technology involves antisense oligonucleotides designed to modulate the splicing of the SMN2 gene, thereby increasing the production of functional SMN protein to treat the neurodegenerative disease spinal muscular atrophy.

Key Procedural History: This lawsuit is the second action filed by Plaintiffs against Defendants concerning the same ANDA. A prior suit alleged infringement of three different patents. This current action was filed in response to Defendants' "Second Notice Letter," which contained Paragraph IV certifications against the three patents-in-suit, asserting they are invalid, unenforceable, or will not be infringed by the proposed generic product.

Case Timeline

Date	Event
2005-06-23	Earliest Priority Date for '977 Patent
2009-06-17	Earliest Priority Date for '853 Patent
2009-06-17	Earliest Priority Date for '750 Patent
2013-01-29	'977 Patent Issued
2015-03-17	'853 Patent Issued
2017-08-01	'750 Patent Issued
2026-04-10	Plaintiffs received Somerset's First Notice Letter for ANDA
2026-05-29	Date of Somerset's Second Notice Letter
2026-06-22	Complaint Filing Date

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 8,361,977 - "Compositions and methods for modulation of SMN2 splicing"

Patent Identification: U.S. Patent No. [8,361,977](#), titled "Compositions and methods for modulation of SMN2 splicing," issued on January 29, 2013 **Compl. ¶29**

The Invention Explained

Problem Addressed: The patent addresses spinal muscular atrophy (SMA), a neurodegenerative disorder caused by the loss of the SMN1 gene. A nearly identical gene, SMN2, cannot fully compensate because a silent mutation results in the inefficient inclusion of

a critical segment (exon 7) in its messenger RNA (mRNA), leading to a non-functional protein
'977 Patent, col. 2:24-48

□**The Patented Solution:** The invention provides antisense compounds, which are short, synthetic nucleic acid chains, designed to bind to specific sites on the SMN2 pre-mRNA. This binding modulates the splicing process to increase the inclusion of exon 7, thereby promoting the production of a full-length, functional SMN protein from the SMN2 gene '977 Patent, abstract '977 Patent, col. 3:5-13

□**Technical Importance:** This technology offers a therapeutic strategy for SMA by correcting the genetic defect at the RNA level, using the patient's own SMN2 gene as a template to produce the protein that is otherwise missing '977 Patent, col. 4:50-65

Key Claims at a Glance

□The complaint asserts independent claim 19 Compl. ¶48

□The essential elements of independent claim 19 are:

□An antisense oligonucleotide having a nucleotide sequence 100% complementary to a target region of SEQ ID NO: 1.

□The 5'-most nucleotide of the target region is nucleotide 124 of SEQ ID NO: 1.

□The antisense oligonucleotide is 12 to 20 nucleotides in length.

□Each nucleoside of the antisense oligonucleotide comprises a 2'-O-methoxyethyl sugar modification.

□The complaint does not explicitly reserve the right to assert dependent claims but alleges infringement of "one or more of the claims" Compl. ¶49

U.S. Patent No. 8,980,853 - "Compositions and methods for modulation of SMN2 splicing in a subject"

□**Patent Identification:** U.S. Patent No. [8,980,853](#), titled "Compositions and methods for modulation of SMN2 splicing in a subject," issued on March 17, 2015 Compl. ¶33

The Invention Explained

□**Problem Addressed:** The patent addresses the need for effective treatment of SMA, particularly severe, infantile-onset forms of the disease, by correcting the SMN2 splicing defect in a patient '853 Patent, col. 2:1-15

□**The Patented Solution:** The invention claims a specific method of treating SMA by administering a precisely defined antisense oligonucleotide directly into the intrathecal space (the fluid-filled space around the spinal cord) of a subject via a bolus injection. This delivery route is intended to effectively target the neurons of the central nervous system affected by SMA '853 Patent, abstract '853 Patent, col. 3:1-4

□**Technical Importance:** The claimed method specifies a direct and clinically relevant route of administration (intrathecal injection) necessary to deliver the therapeutic oligonucleotide to the central nervous system, bypassing the blood-brain barrier which typically prevents drugs from reaching the brain and spinal cord '853 Patent, col. 3:45-52

Key Claims at a Glance

□The complaint asserts independent claim 1 Compl. ¶61

□The essential elements of independent claim 1 are:

- A method comprising administering by a bolus injection into the intrathecal space of a subject with infantile-onset type I spinal muscular atrophy (SMA).
- An antisense compound comprising an antisense oligonucleotide consisting of 18 linked nucleosides.
- The oligonucleotide has a nucleobase sequence consisting of the nucleobase sequence SEQ ID NO: 1.
- Each internucleoside linkage of the oligonucleotide is a phosphorothioate linkage.
- Each nucleoside of the oligonucleotide is a 2'-MOE nucleoside.
- The administering of the antisense compound ameliorates at least one symptom of SMA in the subject.
- The complaint does not explicitly reserve the right to assert dependent claims but alleges infringement of "one or more of the claims" [Compl. ¶62](#)

U.S. Patent No. 9,717,750 - "Compositions and methods for modulation of SMN2 splicing in a subject"

- **Patent Identification:** U.S. Patent No. [9,717,750](#), titled "Compositions and methods for modulation of SMN2 splicing in a subject," issued on August 1, 2017 [Compl. ¶37](#)
- **Technology Synopsis:** The patent claims a method of treating a human subject having type II SMA by administering a specific 18-nucleoside antisense oligonucleotide via bolus injection into the intrathecal space ['750 Patent, abstract](#) ['750 Patent, claim 1](#) The method is intended to ameliorate symptoms of SMA by correcting the splicing of the SMN2 gene ['750 Patent, claim 1](#)
- **Asserted Claims:** The complaint asserts at least independent claim 1 [Compl. ¶75](#)
- **Accused Features:** The complaint alleges that the use of Somerset's Proposed ANDA Product, in accordance with its proposed label, will infringe the patent [Compl. ¶76](#) [Compl. ¶77](#)

III. The Accused Instrumentality

- **Product Identification:** The accused instrumentality is "Somerset's Proposed ANDA Product," identified as a generic version of Spinraza® (nusinersen) intrathecal injection, 12 mg/5 mL, for which Defendants seek FDA approval under ANDA No. 221418 [Compl. ¶1](#)
- **Functionality and Market Context:** The complaint alleges that the active ingredient in the proposed product is nusinersen [Compl. ¶44](#), an antisense oligonucleotide designed to treat spinal muscular atrophy (SMA) [Compl. ¶26](#) The product is intended to be administered by healthcare professionals as an intrathecal injection [Compl. ¶1](#) [Compl. ¶46](#) The complaint alleges that the product's proposed label will be "substantially identical" to the label for the branded drug Spinraza® and will instruct for its administration in a manner that infringes the asserted patents [Compl. ¶46](#) If approved, the product would be marketed as a generic competitor to Spinraza® [Compl. ¶¶1-2](#)

No probative visual evidence provided in complaint.

IV. Analysis of Infringement Allegations

'977 Patent Infringement Allegations

Claim Element (from Independent Claim 19)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
[A]n antisense oligonucleotide having a nucleotide sequence 100% complementary to a target region of SEQ ID NO: 1...	The accused product is alleged to be or contain nusinersen, an antisense oligonucleotide designed to be complementary to a target region in the SMN2 pre-mRNA.	¶44; ¶48; ¶49	col. 63:62-65
wherein: the 5'-most nucleotide of the target region is nucleotide 124 of SEQ ID NO: 1;	The nusinersen in the accused product is alleged to target this specific nucleotide position within the SMN2 pre-mRNA.	¶44; ¶48; ¶49	col. 64:14-16
the antisense oligonucleotide is 12 to 20 nucleotides in length;	The nusinersen in the accused product is alleged to have a length that falls within this range.	¶44; ¶48; ¶49	col. 64:17-18
and each nucleoside of the antisense oligonucleotide comprises a 2'-O-methoxyethyl sugar modification.	The nusinersen in the accused product is alleged to contain this specific chemical modification at each nucleoside.	¶44; ¶48; ¶49	col. 64:19-21

'853 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
[A] method comprising administering by a bolus injection into the intrathecal space of a subject with infantile-onset type I spinal muscular atrophy (SMA)	The proposed product label is alleged to instruct administration by intrathecal injection to patients with SMA.	¶46; ¶61; ¶63	col. 55:1-11
an antisense compound comprising an antisense oligonucleotide consisting of 18 linked nucleosides, wherein the oligonucleotide has a nucleobase sequence consisting of the nucleobase	The accused product is alleged to be nusinersen, which is an 18-nucleoside antisense oligonucleotide with this specific sequence.	¶44; ¶61; ¶62	col. 55:7-11

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
sequence SEQ ID NO: 1...			

wherein each internucleoside linkage of the oligonucleotide is a phosphorothioate linkage, wherein each nucleoside of the oligonucleotide is a 2'-MOE nucleoside,	The nusinersen in the accused product is alleged to contain these specific chemical structures (phosphorothioate linkages and 2'-MOE sugar modifications).	¶44; ¶61; ¶62	col. 55:11-15
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and wherein the administering of the antisense compound ameliorates at least one symptom of SMA in the subject.	The proposed label is alleged to instruct a method of use that results in the therapeutic benefit of ameliorating SMA symptoms.	¶46; ¶61; ¶63	col. 55:15-17
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Identified Points of Contention:

Scope Questions: For the '853 and '750 patents, which claim methods of treating specific patient populations (e.g., "type I SMA" or "type II SMA"), a central question may be whether the instructions on the defendant's proposed label will direct use in a way that falls squarely within the scope of these claimed patient groups.

Technical Questions: For the '977 patent, which claims a specific chemical composition, the dispute will likely focus on whether the defendant's proposed product is chemically and structurally identical to the claimed oligonucleotide. For the method patents ('853 and '750), a question of fact may arise regarding whether administration according to the proposed label necessarily results in the functional outcome of "ameliorat[ing] at least one symptom of SMA," as required by the claims.

V. Key Claim Terms for Construction

The complaint does not provide sufficient detail to identify specific claim terms that are definitively in dispute. However, based on the nature of the claims, certain terms are likely to be a focus of litigation.

Term 1 (from '853 Patent, Claim 1)

The Term: "ameliorates at least one symptom of SMA in the subject"

Context and Importance: This functional language is a required step of the method claim. Practitioners may focus on this term because Defendants could argue it is indefinite under 35 U.S.C. § 112 for failing to specify what degree of amelioration is required, or they may argue that their product's label does not guarantee this outcome for every patient, thereby avoiding inducement of infringement.

Intrinsic Evidence for Interpretation:

❑ **Evidence for a Broader Interpretation:** The specification describes a wide range of potential benefits, stating the methods can result in "improved motor function," "delayed or reduced loss of motor function," "improved respiratory function," or "improved survival" '853 Patent, col. 5:35-43 This could support an interpretation where achieving any of these constitutes "amelioration."

❑ **Evidence for a Narrower Interpretation:** Defendants might point to specific clinical trial data or examples in the patent to argue that the term requires a specific, statistically significant level of improvement in a validated clinical endpoint, rather than any subjective or minor improvement.

Term 2 (from '853 Patent, Claim 1)

❑ **The Term:** "subject with infantile-onset type I spinal muscular atrophy (SMA)"

❑ **Context and Importance:** This term defines the specific patient population for the claimed method. Its construction is critical because infringement will depend on whether the defendant's proposed label instructs administration to this exact group. A mismatch between the claim's definition and the label's indication could be a basis for a non-infringement argument.

❑ **Intrinsic Evidence for Interpretation:**

❑ **Evidence for a Broader Interpretation:** Plaintiffs may argue the term should be given its plain and ordinary meaning as understood by a person of ordinary skill in the medical field at the time of the invention.

❑ **Evidence for a Narrower Interpretation:** The patent's background section provides a specific clinical description of SMA types, noting that "Type I SMA is the most severe form with onset at birth or within 6 months and typically results in death within 2 years" and that such children "are unable to sit or walk" '853 Patent, col. 2:5-10 A defendant may argue that the claim is limited to patients meeting this narrow, severe definition.

VI. Other Allegations

❑ **Indirect Infringement:** The complaint alleges that Defendants will induce infringement of the method claims ('853 and '750 patents) by creating a product label that will instruct healthcare professionals to administer the accused product in a manner that directly infringes those claims Compl. ¶156 Compl. ¶170 Compl. ¶184 The complaint further alleges contributory infringement, stating the accused product is especially made for an infringing use and is not suitable for substantial noninfringing use Compl. ¶157 Compl. ¶171 Compl. ¶185

❑ **Willful Infringement:** The complaint does not contain a formal count for willful infringement. However, it lays the factual groundwork for such a claim by alleging that Defendants had knowledge of the asserted patents at least due to their listing in the FDA's Orange Book and their inclusion in the "Second Notice Letter" sent to Plaintiffs Compl. ¶155 Compl. ¶169 Compl. ¶183 The prayer for relief requests a finding of an exceptional case and an award of attorneys' fees Compl., prayer (f)

VII. Analyst's Conclusion: Key Questions for the Case

1.A central issue will be one of **structural and chemical identity**: Does the Defendants' proposed generic nusinersen product fall within the precise structural definition of the composition claimed in the '977 patent, including its sequence, length, and specific chemical modifications?

2.A second key issue will be one of **induced infringement by label**: Will the language of the Defendants' proposed product label-which is alleged to be substantially identical to the Spinraza® label-be found to actively encourage or instruct healthcare professionals to perform every step of the methods claimed in the '853 and '750 patents, particularly with respect to administration to the specific SMA patient subtypes recited in the claims?

3.A third question will involve **claim construction**: How will the court define the scope of functional and patient-population limitations in the method claims, such as "ameliorates at least one symptom of SMA" and "infantile-onset type I spinal muscular atrophy," and will the defendant's proposed indication for use fall within those definitions?

Case 1:26-cv-00735-CFC Document 1 Filed 06/22/26 Page 1 of 20 PageID #: 1 IN THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF DELAWARE BIOGEN MA INC., BIOGEN INC., COLD SPRING HARBOR LABORATORY, and IONIS PHARMACEUTICALS, INC., Plaintiffs, v. SOMERSET THERAPEUTICS, LLC, SOMERSET PHARMA, LLC, SOMERSET THERAPEUTICS PRIVATE LIMITED f/k/a SOMERSET THERAPEUTICS LIMITED, and ODIN PHARMACEUTICALS, LLC, Defendants.)))))))))))))))) C.A. No. _____ COMPLAINT Plaintiffs Biogen MA Inc., Biogen Inc. (Biogen MA Inc. and Biogen Inc. together “Biogen”), Cold Spring Harbor Laboratory (“CSHL”), and Ionis Pharmaceuticals, Inc. (“Ionis”) (collectively, “Plaintiffs”), by their attorneys, hereby allege as follows: NATURE OF THE ACTION 1. This is an action for patent infringement under the patent laws of the United States, Title 35, United States Code, that arises out of the submission by defendants Somerset Therapeutics, LLC, Somerset Pharma, LLC, Somerset Therapeutics Private Limited f/k/a Somerset Therapeutics Limited, and Odin Pharmaceuticals, LLC (collectively, “Somerset Defendants”) of Abbreviated New Drug Application (“ANDA”) No. 221418 (“Somerset’s ANDA”) to the U.S. Food and Drug Administration (“FDA”) seeking approval to engage in the commercial manufacture, use, offer for sale, and sale of a generic version of Spinraza® (nusinersen) intrathecal injection, 12 mg/5 mL (“Somerset’s Proposed ANDA Product”). Upon information and belief, if approved by the FDA, Somerset’s Proposed ANDA Product will be 1 Case 1:26-cv-00735-CFC Document 1 Filed 06/22/26 Page 2 of 20 PageID #: 2 marketed as a competing product to Spinraza®, a product developed and marketed by Biogen for the treatment of spinal muscular atrophy (“SMA”). 2. Biogen previously filed an action in this Court for patent infringement involving Somerset’s ANDA. That action, Biogen MA Inc. et al. v. Somerset Therapeutics, LLC et al., 26- cv-00580-CFC (D. Del.) (“the First Suit”), alleged infringement of U.S. Patent Nos. 9,926,559 (“the ’559 Patent”), 10,436,802 (“the ’802 Patent”), and 12,013,403 (“the ’403 Patent”). The First Suit was filed in response to a letter from Somerset Therapeutics, LLC, received by Biogen on April 10, 2026 (“Somerset’s First Notice Letter”), which notified Biogen that the Somerset Defendants had submitted their ANDA. The First Suit included counts for

infringement of the '559 Patent, the '802 Patent, and the '403 Patent. 3. This action is filed in response to a new, second letter from Somerset Therapeutics, LLC to Biogen and CSHL, received by both Biogen and CSHL on June 1, 2026 and dated May 29, 2026 ("Somerset's Second Notice Letter"), stating that Somerset's ANDA included Paragraph IV certifications seeking to obtain approval to engage in the commercial manufacture, use, or sale of Somerset's Proposed ANDA Product before the expiration of U.S. Patent Nos. 8,361,977 ("the '977 Patent"), 8,980,853 ("the '853 Patent"), and 9,717,750 ("the '750 Patent") (collectively, "the Asserted Patents"). PARTIES 4. Biogen MA Inc. is a corporation organized and existing under the laws of the Commonwealth of Massachusetts, having a principal place of business at 225 Binney Street, Cambridge, Massachusetts 02142. 5. Biogen Inc. is a corporation organized and existing under the laws of the State of Delaware, having a principal place of business at 225 Binney Street, Cambridge, Massachusetts 02142. 2 Case 1:26-cv-00735-CFC Document 1 Filed 06/22/26 Page 3 of 20 PageID #: 3 6. CSHL is a New York not-for-profit education corporation chartered by action of the Board of Regents of the State of New York, having a principal place of business at One Bungtown Road, Cold Spring Harbor, NY 11724. 7. Ionis is a corporation organized and existing under the laws of the State of Delaware, having a principal place of business at 2855 Gazelle Court, Carlsbad, California 92010. 8. On information and belief, Somerset Therapeutics, LLC ("Somerset Therapeutics") is a limited liability company organized and existing under the laws of the State of Delaware, having a principal place of business at 300 Franklin Square Drive, Somerset, New Jersey 08873. Upon information and belief, Somerset Therapeutics has and maintains a registered agent to accept service of process and otherwise perform the functions of a registered agent in Delaware: Incorp Services, Inc., located at 131 Continental Drive, Suite 301, Newark, Delaware 19713. 9. On information and belief, Somerset Pharma, LLC ("Somerset Pharma") is a limited liability company organized and existing under the laws of the State of Delaware, having a principal place of business at 300 Franklin Square Drive, Somerset, New Jersey 08873. Upon information and belief, Somerset Pharma has and maintains a registered agent to accept service of process and otherwise perform the functions of a registered agent in Delaware: Incorp Services, Inc., located at 131 Continental Drive, Suite 301, Newark, Delaware 19713. On information and belief, Somerset Pharma is in the business of, among other things, manufacturing and selling generic versions of branded pharmaceutical products for the United States market, including in this judicial district. 10. On information and belief, Somerset Therapeutics Private Limited f/k/a Somerset Therapeutics Limited ("Somerset Limited") is a corporation organized and existing under the laws of India, having a corporate headquarters at 54/1, Budihal, Nelamangala, Bengaluru 562 123, 3 Case 1:26-cv-00735-CFC Document 1 Filed 06/22/26 Page 4 of 20 PageID #: 4 Karnataka, India. On information and belief, Somerset Limited plays a role in the production and supply of the Somerset Defendants' generic drug products. 11. On information and belief, Odin Pharmaceuticals, LLC ("Odin") is a limited liability company organized and existing under the laws of the State of Delaware, having its principal place of business at 300 Franklin Square Drive, Somerset, New Jersey 08873. Upon information and belief, Odin has and maintains a registered agent to accept service of process and otherwise perform the functions of a registered agent in Delaware: Incorp Services, Inc., located at 131 Continental Drive, Suite 301, Newark, Delaware 19713. On information and belief, Odin operates as a research and development facility that supports research and development efforts undertaken by the Somerset Defendants with respect to their generic drug products. 12. On information and belief, Somerset Therapeutics, Somerset Pharma, Somerset Limited, and Odin collaborate with respect to the development, manufacturing, regulatory approval, marketing, sale, importation, and/or distribution of generic drug products for

sale in the United States, including in Delaware. 13. On information and belief, Somerset Therapeutics, in collaboration with Somerset Pharma, Somerset Limited, and Odin, caused ANDA No. 221418 to be submitted to FDA and seeks FDA approval of ANDA No. 221418. 14. On information and belief, Somerset Therapeutics, Somerset Pharma, Somerset Limited, and Odin acted collaboratively in preparing and submitting ANDA No. 221418 and continue to act collaboratively in pursuing FDA approval of ANDA No. 221418 and seeking to market Somerset's Proposed ANDA Product in the United States, including in the State of Delaware. 4 Case 1:26-cv-00735-CFC Document 1 Filed 06/22/26 Page 5 of 20 PageID #: 5 15. On information and belief, Somerset Therapeutics, Somerset Pharma, Somerset Limited, and Odin rely on material assistance from one another to market, distribute, offer for sale, and/or sell generic drugs in the U.S. market, including in the State of Delaware. On information and belief, Somerset Therapeutics, Somerset Pharma, Somerset Limited, and Odin intend to act collaboratively to commercially manufacture, import, market, distribute, offer for sale, and/or sell Somerset's Proposed ANDA Product, in the event FDA approves ANDA No. 221418. JURISDICTION AND VENUE 16. This Court has subject matter jurisdiction over this action pursuant to 28 U.S.C. §§ 1331, 1338(a), 2201, and 2202. 17. The Court has personal jurisdiction over Somerset Therapeutics because Somerset Therapeutics is incorporated in the State of Delaware and maintains a registered agent for service of process in Delaware. 18. The Court has personal jurisdiction over Somerset Pharma because Somerset Pharma is incorporated in the State of Delaware and maintains a registered agent for service of process in Delaware. 19. The Court has personal jurisdiction over Odin because Odin is incorporated in the State of Delaware and maintains a registered agent for service of process in Delaware. 20. The Court has personal jurisdiction over Somerset Limited because, inter alia, on information and belief, Somerset Limited (1) has purposefully availed itself of the privilege of doing business in Delaware, including directly or indirectly through its related entities (e.g., Somerset Therapeutics, Somerset Pharma, and Odin), and (2) maintains pervasive, continuous, and systematic contacts with the State of Delaware through the marketing, distribution, and sale of generic versions of branded pharmaceutical products in the State of Delaware, directly and through its affiliates, and by deriving substantial revenue from the importation and sale of its products in 5 Case 1:26-cv-00735-CFC Document 1 Filed 06/22/26 Page 6 of 20 PageID #: 6 the State of Delaware. In the alternative, this Court has personal jurisdiction over Somerset Limited in the State of Delaware under Federal Rule of Civil Procedure 4(k)(2) because Somerset Limited is not subject to jurisdiction in any state's courts of general jurisdiction and exercising jurisdiction over it is consistent with the United States Constitution and laws. 21. In addition, this Court has personal jurisdiction over the Somerset Defendants because, inter alia, the Somerset Defendants have purposefully availed themselves of the benefits and protections of Delaware's laws such that they should reasonably anticipate being haled into court here. Upon information and belief, the Somerset Defendants, themselves and through their subsidiaries, agents, and/or affiliates, develop, manufacture, import, market, offer to sell, sell, and/or distribute a broad range of generic pharmaceutical products throughout the United States, including in Delaware, and therefore transact business within Delaware relating to Plaintiffs' claims, and/or have engaged in systematic and continuous business contacts within Delaware. 22. Furthermore, this Court has personal jurisdiction over the Somerset Defendants because, inter alia, upon information and belief: (1) the Somerset Defendants developed the ANDA product that is the subject of ANDA No. 221418 and submitted ANDA No. 221418 for the purpose of seeking approval to engage in the commercial manufacture, use, sale, or offer for sale in the United States of Somerset's Proposed ANDA Product, including in Delaware; (2) upon approval of Somerset's ANDA, the Somerset Defendants will market,

distribute, offer for sale, and sell in the United States, and/or import into the United States, including in Delaware, Somerset's Proposed ANDA Product, and will derive substantial revenue from the use or consumption of Somerset's Proposed ANDA Product in Delaware; and (3) upon approval of Somerset's ANDA, Somerset's Proposed ANDA Product will, among other things, be marketed, distributed, offered for sale, and sold in Delaware, and/or imported into Delaware, prescribed by 6 Case 1:26-cv-00735-CFC Document 1 Filed 06/22/26 Page 7 of 20 PageID #: 7 physicians practicing in Delaware and administered to patients in Delaware, all of which would have substantial effects in Delaware. By submitting Somerset's ANDA, the Somerset Defendants have shown they will use distribution channels to direct sales of Somerset's Proposed ANDA Product into Delaware. 23. In addition, this Court has personal jurisdiction over the Somerset Defendants because they have committed, aided, abetted, induced, contributed to, or participated in the commission of the tortious act of patent infringement that has led and/or will lead to foreseeable harm and injury to Biogen Inc. and Ionis, both Delaware corporations. 24. In addition, this Court has personal jurisdiction over the Somerset Defendants because they have regularly engaged in patent litigation concerning their ANDA products in this District, including by filing counterclaims in such actions, and have consented to jurisdiction in Delaware in prior cases arising out of the filing of ANDAs. See, e.g., Biogen MA Inc. et al. v. Somerset Therapeutics, LLC et al., C.A. No. 26-580-CFC (D. Del.); Hope Medical Enterprises, Inc. d/b/a Hope Pharmaceuticals v. Somerset Therapeutics, LLC et al., C.A. No. 25-1523-JFM (D. Del.); Astellas Pharma Inc. et al. v. Renata Limited and Somerset Therapeutics, LLC., C.A. No. 25-1383-MN-EGT (D. Del.); Vifor Fresenius Medical Care Renal Pharma Ltd. et al. v. Gland Pharma Limited et al., C.A. No. 25-1382-CFC (D. Del.); AVEO Pharmaceuticals, Inc. v. Somerset Therapeutics, LLC et al., C.A. No. 25-560-MN (D. Del.). 25. Venue is proper in this judicial district under 28 U.S.C. § 1400(b) because Somerset Therapeutics, Somerset Pharma, and Odin are organized under the laws of the State of Delaware and maintain registered agents for service of process in Delaware and therefore reside in Delaware. Venue is proper against Somerset Limited, a foreign corporation, in any judicial district that has personal jurisdiction over it, including in this District, under 28 U.S.C. § 1391(c)(3). 7 Case 1:26-cv-00735-CFC Document 1 Filed 06/22/26 Page 8 of 20 PageID #:

8 BACKGROUND SPINRAZA® (NUSINERSEN) 26. Spinraza® is a survival motor neuron-2 (SMN2)-directed antisense oligonucleotide indicated for the treatment of spinal muscular atrophy (SMA) in pediatric and adult patients. 27. Biogen Inc. is the holder of approved New Drug Application ("NDA") No. 209531 for Spinraza®, which has been approved by the FDA. 28. The Asserted Patents are listed for NDA No. 209531 for Spinraza® in the FDA's Approved Drug Products with Therapeutic Equivalence Evaluations, commonly known as the "Orange Book." 29. The '977 Patent, titled "Compositions and methods for modulation of SMN2 splicing," was duly and legally issued on January 29, 2013. A copy of the '977 Patent is attached as Exhibit A. 30. Biogen MA Inc. and CSHL are the assignees of the '977 Patent. 31. Plaintiffs hold exclusive rights with respect to the '977 Patent. 32. There is an actual case or controversy between the parties regarding the Somerset Defendants' liability for their infringement of the '977 Patent. 33. The '853 Patent, titled "Compositions and methods for modulation of SMN2 splicing in a subject," was duly and legally issued on March 17, 2015. A copy of the '853 Patent is attached as Exhibit B. 34. Biogen MA Inc. and CSHL are the assignees of the '853 Patent. 35. Plaintiffs hold exclusive rights with respect to the '853 Patent. 36. There is an actual case or controversy between the parties regarding the Somerset Defendants' liability for their infringement of the '853 Patent. 8 Case 1:26-cv-00735-CFC Document 1 Filed 06/22/26 Page 9 of 20 PageID #: 9 37. The '750 Patent, titled "Compositions and methods for modulation of SMN2 splicing in a subject," was duly and legally

issued on August 1, 2017. A copy of the '750 Patent is attached as Exhibit C. 38. Biogen MA Inc. and CSHL are the assignees of the '750 Patent. 39. Plaintiffs hold exclusive rights with respect to the '750 Patent. 40. There is an actual case or controversy between the parties regarding the Somerset Defendants' liability for their infringement of the '750 Patent. 41. This action is being filed within 45 days of Biogen's and CSHL's receipt of Somerset's Second Notice Letter. SOMERSET'S ANDA 42. According to Somerset's Second Notice Letter, ANDA No. 221418 includes a certification pursuant to the Food, Drug, & Cosmetic Act ("FDCA"), 21 U.S.C. § 355(j)(2)(A)(vii)(IV) ("Paragraph IV Certification"), that the Asserted Patents are invalid, unenforceable, and/or will not be infringed by the commercial manufacture, use, sale, or offer for sale of Somerset's Proposed ANDA Product. 43. The Somerset Defendants were aware of the Asserted Patents at least as of when ANDA No. 221418 was filed with a Paragraph IV Certification. 44. Upon information and belief, nusinersen is the active ingredient in Somerset's Proposed ANDA Product. 45. Upon information and belief, ANDA No. 221418 refers to and relies upon NDA No. 209531 for Spinraza® and contains data that, according to the Somerset Defendants, demonstrate bioequivalence of Somerset's Proposed ANDA Product and Spinraza®, see 21 U.S.C. § 355(j)(2); 21 C.F.R. § 314.94(a)(7), or the Somerset Defendants have sought a waiver of the 9 Case 1:26-cv-00735-CFC Document 1 Filed 06/22/26 Page 10 of 20 PageID #: 10 requirement to demonstrate bioequivalence of Somerset's Proposed ANDA Product and Spinraza®. 46. Upon information and belief, the label for Somerset's Proposed ANDA Product ("Somerset's Proposed Label") will be substantially identical to the Spinraza® label. Upon information and belief, the Somerset Defendants intend to have healthcare professionals administer Somerset's Proposed ANDA Product, if approved, as set forth in Somerset's Proposed Label for this ANDA product. Upon information and belief, Somerset's Proposed Label will instruct healthcare professionals to prescribe and administer Somerset's Proposed ANDA Product in the manner set forth in Somerset's Proposed Label. COUNT I (Infringement of the '977 Patent) Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein. 48. Claim 19 of the '977 Patent covers "[a]n antisense oligonucleotide having a 47. nucleotide sequence 100% complementary to a target region of SEQ ID NO: 1 as measured over the entirety of the antisense oligonucleotide, wherein: the 5'-most nucleotide of the target region is nucleotide 124 of SEQ ID NO: 1; the antisense oligonucleotide is 12 to 20 nucleotides in length; and each nucleoside of the antisense oligonucleotide comprises a 2'-O-methoxyethyl sugar modification." 49. Upon information and belief, Somerset's Proposed ANDA Product is covered by one or more of the claims of the '977 Patent, including at least claim 19. 50. Upon information and belief, the commercial manufacture, sale, offer for sale, and/or importation of Somerset's Proposed ANDA Product will infringe one or more claims of the '977 Patent, including at least claim 19, either literally or under the doctrine of equivalents.

51. Upon information and belief, the Somerset Defendants submitted as part of ANDA No. 221418 a certification of the type described in Section 505(j)(2)(A)(vii)(IV) of the FDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV), asserting that the claims of the '977 Patent are invalid, unenforceable, and/or not infringed by the commercial manufacture, use, offer for sale, or sale of Somerset's Proposed ANDA Product.

52. The Somerset Defendants submitted ANDA No. 221418 with the purpose of obtaining approval under the FDCA to engage in the commercial manufacture, use, offer for sale,

and/or sale of Somerset's Proposed ANDA Product prior to the expiration of the '977 Patent.

53. The Somerset Defendants' submission of ANDA No. 221418 for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, and/or sale of Somerset's Proposed ANDA Product prior to the expiration of the '977 Patent was an act of infringement of the '977 Patent under 35 U.S.C. § 271(e)(2)(A).

54. Upon information and belief, the Somerset Defendants intend to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Somerset's Proposed ANDA Product immediately and imminently upon the approval of ANDA No. 221418 and any amendments thereto, i.e., prior to the expiration of the '977 Patent, in violation of 35 U.S.C. § 271(a).

55. Upon information and belief, the Somerset Defendants have had knowledge of the '977 Patent at least because the '977 Patent is listed in the FDA's Orange Book for Biogen's Spinraza® drug product, and because Somerset's Second Notice Letter references the '977 Patent. Notwithstanding this knowledge, the Somerset Defendants continue to assert their intent to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation

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of Somerset's Proposed ANDA Product and Somerset's Proposed Label therefor immediately and imminently upon the approval of ANDA No. 221418.

56. Upon information and belief, the Somerset Defendants plan and intend to, and will, actively induce infringement of the '977 Patent when ANDA No. 221418 is approved, and will do so with specific intent to induce infringement of the '977 Patent, in violation of 35 U.S.C. § 271(b). Further upon information and belief, the Somerset Defendants plan and intend to, and will, do so immediately and imminently upon approval.

57. Upon information and belief, the Somerset Defendants know that Somerset's Proposed ANDA Product is especially made or adapted for use in patented methods of the '977 Patent, and that Somerset's Proposed ANDA Product is not suitable for substantial noninfringing use. Upon information and belief, the Somerset Defendants plan and intend to, and will, contribute to infringement of the '977 Patent immediately and imminently upon approval of ANDA No. 221418, in violation of 35 U.S.C. § 271(c).

58. The foregoing actions by the Somerset Defendants constitute and/or will constitute infringement of the '977 Patent, active inducement of infringement of the '977 Patent, and

contribution to the infringement by others of the '977 Patent, either literally or under the doctrine of equivalents.

59. Unless the Somerset Defendants are enjoined from infringing the '977 Patent, actively inducing infringement of the '977 Patent, and contributing to the infringement by others of the '977 Patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT II

(Infringement of the '853 Patent)

60.

Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

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61. Claim 1 of the '853 Patent covers “[a] method comprising administering by a bolus injection into the intrathecal space of a subject with infantile-onset type I spinal muscular atrophy (SMA) an antisense compound comprising an antisense oligonucleotide consisting of 18 linked nucleosides, wherein the oligonucleotide has a nucleobase sequence consisting of the nucleobase sequence SEQ ID NO: 1, wherein each internucleoside linkage of the oligonucleotide is a phosphorothioate linkage, wherein each nucleoside of the oligonucleotide is a 2'-MOE nucleoside, and wherein the administering of the antisense compound ameliorates at least one symptom of SMA in the subject.”

62. Upon information and belief, Somerset's Proposed ANDA Product and its use are covered by one or more of the claims of the '853 Patent, including at least claim 1.

63. Upon information and belief, the commercial manufacture, sale, offer for sale, and/or importation of Somerset's Proposed ANDA Product, and/or the use of Somerset's Proposed ANDA Product in accordance with and as directed by Somerset's Proposed Label for that product, will infringe one or more claims of the '853 Patent, including at least claim 1, either literally or under the doctrine of equivalents.

64. Upon information and belief, the Somerset Defendants submitted as part of ANDA No. 221418 a certification of the type described in Section 505(j)(2)(A)(vii)(IV) of the FDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV), asserting that the claims of the '853 Patent are invalid, unenforceable, and/or not infringed by the commercial manufacture, use, offer for sale, or sale of Somerset's Proposed ANDA Product.

65.

Somerset Therapeutics did not contend in Somerset's Second Notice Letter that Somerset's Proposed ANDA Product, or the use of Somerset's Proposed ANDA Product in

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accordance with and as directed by Somerset's Proposed Label for that product, would not infringe the '853 Patent.

66. The Somerset Defendants submitted ANDA No. 221418 with the purpose of obtaining approval under the FDCA to engage in the commercial manufacture, use, offer for sale, and/or sale of Somerset's Proposed ANDA Product prior to the expiration of the '853 Patent.

67. The Somerset Defendants' submission of ANDA No. 221418 for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, and/or sale of Somerset's Proposed ANDA Product prior to the expiration of the '853 Patent was an act of infringement of the '853 Patent under 35 U.S.C. § 271(e)(2)(A).

68. Upon information and belief, the Somerset Defendants intend to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Somerset's Proposed ANDA Product and Somerset's Proposed Label immediately and imminently upon the approval of ANDA No. 221418 and any amendments thereto, i.e., prior to the expiration of the '853 Patent, in violation of 35 U.S.C. § 271(a).

69. Upon information and belief, the Somerset Defendants have had knowledge of the '853 Patent at least because the '853 Patent is listed in the FDA's Orange Book for Biogen's Spinraza® drug product, and because Somerset's Second Notice Letter references the '853 Patent. Notwithstanding this knowledge, the Somerset Defendants continue to assert their intent to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Somerset's Proposed ANDA Product and Somerset's Proposed Label therefor immediately and imminently upon the approval of ANDA No. 221418.

70. Upon information and belief, the Somerset Defendants plan and intend to, and will, actively induce infringement of the '853 Patent when ANDA No. 221418 is approved, and will do

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so with specific intent to induce infringement of the '853 Patent, in violation of 35 U.S.C. § 271(b). Further upon information and belief, the Somerset Defendants plan and intend to, and will, do so

immediately and imminently upon approval.

71. Upon information and belief, the Somerset Defendants know that Somerset's Proposed ANDA Product is especially made or adapted for use in patented methods of the '853 Patent, and that Somerset's Proposed ANDA Product is not suitable for substantial noninfringing use. Upon information and belief, the Somerset Defendants plan and intend to, and will, contribute to infringement of the '853 Patent immediately and imminently upon approval of ANDA No. 221418, in violation of 35 U.S.C. § 271(c).

72. The foregoing actions by the Somerset Defendants constitute and/or will constitute infringement of the '853 Patent, active inducement of infringement of the '853 Patent, and contribution to the infringement by others of the '853 Patent, either literally or under the doctrine of equivalents.

73. Unless the Somerset Defendants are enjoined from infringing the '853 Patent, actively inducing infringement of the '853 Patent, and contributing to the infringement by others of the '853 Patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

COUNT III

(Infringement of the '750 Patent)

Plaintiffs incorporate each of the preceding paragraphs as if fully set forth herein.

75. Claim 1 of the '750 Patent covers "[a] method comprising administering by a bolus

74.

injection into the intrathecal space of a human subject having type II spinal muscular atrophy (SMA) an antisense compound comprising an antisense oligonucleotide consisting of 18 linked nucleosides, wherein the oligonucleotide has a nucleobase sequence consisting of the nucleobase

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sequence SEQ ID NO: 1, wherein each internucleoside linkage of the oligonucleotide is a phosphorothioate linkage, wherein each nucleoside of the oligonucleotide is a 2'-MOE nucleoside, and wherein the administering of the antisense compound ameliorates at least one symptom of SMA in the human subject."

76. Upon information and belief, Somerset's Proposed ANDA Product and its use are covered by one or more of the claims of the '750 Patent, including at least claim 1.

77. Upon information and belief, the commercial manufacture, sale, offer for sale,

and/or importation of Somerset's Proposed ANDA Product, and/or the use of Somerset's Proposed ANDA Product in accordance with and as directed by Somerset's Proposed Label for that product, will infringe one or more claims of the '750 Patent, including at least claim 1, either literally or under the doctrine of equivalents.

78. Upon information and belief, the Somerset Defendants submitted as part of ANDA No. 221418 a certification of the type described in Section 505(j)(2)(A)(vii)(IV) of the FDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV), asserting that the claims of the '750 Patent are invalid, unenforceable, and/or not infringed by the commercial manufacture, use, offer for sale, or sale of Somerset's Proposed ANDA Product.

79.

Somerset Therapeutics did not contend in Somerset's Second Notice Letter that Somerset's Proposed ANDA Product, or the use of Somerset's Proposed ANDA Product in accordance with and as directed by Somerset's Proposed Label for that product, would not infringe the '750 Patent.

80. The Somerset Defendants submitted ANDA No. 221418 with the purpose of obtaining approval under the FDCA to engage in the commercial manufacture, use, offer for sale, and/or sale of Somerset's Proposed ANDA Product prior to the expiration of the '750 Patent.

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81. The Somerset Defendants' submission of ANDA No. 221418 for the purpose of obtaining approval to engage in the commercial manufacture, use, offer for sale, and/or sale of Somerset's Proposed ANDA Product prior to the expiration of the '750 Patent was an act of infringement of the '750 Patent under 35 U.S.C. § 271(e)(2)(A).

82. Upon information and belief, the Somerset Defendants intend to engage in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Somerset's Proposed ANDA Product and Somerset's Proposed Label immediately and imminently upon the approval of ANDA No. 221418 and any amendments thereto, i.e., prior to the expiration of the '750 Patent, in violation of 35 U.S.C. § 271(a).

83. Upon information and belief, the Somerset Defendants have had knowledge of the '750 Patent at least because the '750 Patent is listed in the FDA's Orange Book for Biogen's Spinraza® drug product, and because Somerset's Second Notice Letter references the '750 Patent. Notwithstanding this knowledge, the Somerset Defendants continue to assert their intent to engage

in the commercial manufacture, use, offer for sale, sale, marketing, distribution, and/or importation of Somerset's Proposed ANDA Product and Somerset's Proposed Label therefor immediately and imminently upon the approval of ANDA No. 221418.

84. Upon information and belief, the Somerset Defendants plan and intend to, and will, actively induce infringement of the '750 Patent when ANDA No. 221418 is approved, and will do so with specific intent to induce infringement of the '750 Patent, in violation of 35 U.S.C. § 271(b). Further upon information and belief, the Somerset Defendants plan and intend to, and will, do so immediately and imminently upon approval.

85. Upon information and belief, the Somerset Defendants know that Somerset's Proposed ANDA Product is especially made or adapted for use in patented methods of the '750
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Patent, and that Somerset's Proposed ANDA Product is not suitable for substantial noninfringing use. Upon information and belief, the Somerset Defendants plan and intend to, and will, contribute to infringement of the '750 Patent immediately and imminently upon approval of ANDA No. 221418, in violation of 35 U.S.C. § 271(c).

86. The foregoing actions by the Somerset Defendants constitute and/or will constitute infringement of the '750 Patent, active inducement of infringement of the '750 Patent, and contribution to the infringement by others of the '750 Patent, either literally or under the doctrine of equivalents.

87. Unless the Somerset Defendants are enjoined from infringing the '750 Patent, actively inducing infringement of the '750 Patent, and contributing to the infringement by others of the '750 Patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law.

REQUEST FOR RELIEF

WHEREFORE, Plaintiffs request the following relief:

(a) A judgment that the Somerset Defendants have infringed the Asserted Patents under 35 U.S.C. § 271(e)(2)(A);

(b) A judgment pursuant to 35 U.S.C. § 271(e)(4)(A) ordering that the effective date of any FDA approval for the Somerset Defendants to make, use, offer for sale, sell, market, distribute, or import Somerset's Proposed ANDA Product, or any product the use of which infringes the Asserted Patents, be not earlier than the latest expiration date among the Asserted

Patents, inclusive of any extension(s) and additional period(s) of exclusivity;

(c) A permanent injunction pursuant to 35 U.S.C. § 271(e)(4)(B) enjoining the Somerset Defendants, and all persons and entities acting in concert with the Somerset Defendants, from making, using, selling, offering for sale, marketing, distributing, or importing Somerset's

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Proposed ANDA Product, or any product the use of which infringes the Asserted Patents, or the inducement of or contribution to any of the foregoing, prior to the expiration date of the latest-expiring of the Asserted Patents, inclusive of any extension(s) and additional period(s) of exclusivity;

(d) A judgment declaring that making, using, selling, offering for sale, marketing, distributing, or importing of Somerset's Proposed ANDA Product, or any product the use of which infringes the Asserted Patents, prior to the expiration date of the latest-expiring of the Asserted Patents, infringes, will infringe, will actively induce infringement of, and/or will contribute to the infringement by others of the Asserted Patents under 35 U.S.C. §§ 271(a), (b) and (c);

(e) An award of damages or other relief, pursuant to 35 U.S.C. § 271(e)(4)(C), if the Somerset Defendants engage in making, using, selling, offering for sale, marketing, distributing, or importing of Somerset's Proposed ANDA Product, or any product the use of which infringes the Asserted Patents, or induces or contributes to such conduct, prior to the expiration date of the latest-expiring of the Asserted Patents, inclusive of any extension(s) and additional period(s) of exclusivity;

(f) A finding that this is an exceptional case and an award of attorneys' fees pursuant to 35 U.S.C. § 285;

(g) An award of Plaintiffs' costs and expenses in this action; and

(h)

Such further and other relief as this Court may deem just and proper.

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